

24LBCV02664 24LBCV02664

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 24LBCV02664 Hearing Date: August 11, 2026 Dept: S27

1. Background

Facts

On December 2, 2024, Plaintiff

Charles Richey ("Plaintiff") filed a complaint against Defendant Stephen

Christopher Bello ("Defendant"), alleging six causes of action: (1) Assault;

(2) Battery; (3) Conversion; (4) False Imprisonment; (5) Intentional Infliction

of Emotional Distress; and (6) Injunctive Relief. Plaintiff alleges that, on November 26,

2024, Defendant aggressively approached Plaintiff, threatening him, and

attempted to wrestle Plaintiff's phone out of his hand.

This matter came on for trial on

February 4, 2026. The Court found in favor of Plaintiff and against Defendant. The Court awarded \$5,000.00 to Plaintiff for pain and suffering, and \$2,500.00 for emotional distress.

Judgment was entered on February

19, 2026, in favor of Plaintiff and against Defendant.

Plaintiff filed a memorandum of

costs on February 26, 2026.

2. Motion

to Tax Costs

On March 17, 2026,

Defendant filed the instant motion to tax costs. Defendant seeks to deny Plaintiff's costs in

their entirety pursuant to Code of Civil Procedure section 1033, subdivision (a),

because Plaintiff recovered a judgment that could have been rendered in a

limited civil case. (Mot., pp. 3-4.) In the alternative, Defendant argues Plaintiff's claimed costs should be taxed because they are unsupported and/or not reasonably necessary. (Mot., pp. 5-8.)

In opposition, Plaintiff argues section 1033, subdivision (a), considers whether a civil case was objectively reasonable when the action was filed, not whether the eventual recovery was justified in hindsight. (Opp., p. 2.) Plaintiff further argues the challenged items were reasonably necessary. (Opp., pp. 4-8.)

A.

Legal Standard

Code of Civil Procedure

section 1032(b) provides that a prevailing party is entitled as a matter of right to recover costs. Section 1033.5 itemizes costs that are recoverable. Code of Civil Procedure section 1033.5(c) states, in relevant part: "Any award for costs shall be subject to the following: (1) Costs are allowable if incurred, whether or not paid. (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (3) Allowable costs shall be reasonable in amount. (4) Items not mentioned in this section . . . may be allowed . . . in the Court's discretion." (Code Civ. Proc., § 1033.5, subd. (c).)

Code of Civil Procedure

section 1032(a)(4) allows for other costs and expenses to be recoverable when expressly authorized by law. (Code Civ. Proc., § 1032(a)(4).)

"If the items in a cost

memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the prevailing party. To controvert this evidence, the burden is on the objecting party to present evidence showing the contrary." (Whatley-Miller v. Cooper (2013) 212

Cal.App.4th 1103, 1115.) "[A] party's 'mere statements in the points and authorities accompanying its notice of motion to strike cost bill and the declaration of its counsel are insufficient to rebut the prima facie showing [that the costs were necessarily incurred]." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.)

B. Whether

Plaintiff's costs should be stricken entirely under Code of Civil Procedure § 1033(a)

Code of Civil Procedure section

1033, subdivision (a), states: "Costs or any portion of claimed costs shall be as determined by the court in its discretion in a case other than a limited civil case in accordance with Section 1034 where the prevailing party recovers a judgment that could have been rendered in a limited civil case."

"[S]ection 1033(a) applies

when a plaintiff has obtained a judgment for money damages in an amount (now \$25,000[1] or less) that could have been recovered in a limited civil case, but the plaintiff did not bring the action as a limited civil case and thus did not take advantage of the cost- and time-saving advantages of limited civil case procedures. In this situation, even though a plaintiff who obtains a money judgment would otherwise be entitled to recover litigation costs as a matter of right, section 1033(a) gives the trial court discretion to deny, in whole or in part, the plaintiff's recovery of litigation costs." (Chavez v. City of Los Angeles (2010) 47 Cal.4th 970, 982–983.)

Defendant argues the Court should disallow all of Plaintiff's costs because he filed the case as an unlimited civil case with no reasonable basis for achieving the jurisdictional minimum and only recovered \$7,500.00. (Mot., p. 3.)

In opposition, Plaintiff argues his forum choice was reasonable, as his complaint supported a punitive damages claim that could exceed the \$35,000 limited civil cap at the time of filing. (Opp., p. 2.)

Here, the Court declines to deny Plaintiff's recovery of litigation costs pursuant to Code of Civil Procedure section 1033, subdivision (a). While Plaintiff was awarded damages well below the unlimited jurisdiction minimum, it cannot be determined that Plaintiff wasted judicial resources. (Valentino v. Elliott Sav-On Gas, Inc. (1988) 201 Cal.App.3d 692, 701 [reasoning that section 1033(a) "is to discourage plaintiffs from 'over filing' their cases"].) This is primarily because Plaintiff held a reasonable belief that his evidence would support

damages exceeding the jurisdictional minimum.

Accordingly, Defendant's motion is denied on this ground. Plaintiff is not precluded from recovering costs when his judgment was less than the jurisdictional minimum.

C. Whether

Plaintiff's claimed costs should be taxed

Defendant argues Plaintiff's claimed costs are unsupported and/or not reasonably necessary to the conduct of the litigation. (Mot., pp. 5-8.) Defendant further argues Plaintiff's claimed costs should be evaluated against what would have been reasonably incurred in a small-claims matter. (Mot., pp. 4-5.)

In opposition, Plaintiff argues his memorandum of costs was verified and timely filed on February 26, 2026; therefore, the memorandum is prima facie evidence that each item was properly incurred. (Opp., p. 3.) Plaintiff further argues Defendant failed to submit evidence showing each claim was not properly incurred. (Opp., p. 3.) Moreover, Plaintiff contends the challenged items were reasonably necessary. (Opp., pp. 4-8.)

As a preliminary matter, the Court is not persuaded by Defendant's assertion Plaintiff's claimed costs should be evaluated against a small-claims matter.

As discussed above, Plaintiff held a reasonable belief his evidence would support damages exceeding the jurisdictional minimum. Defendant provides no case law suggesting the Court should evaluate Plaintiff's claimed costs against a small-claims matter. The Court therefore evaluates each claimed cost on whether it is reasonably necessary to the conduct of the litigation, pursuant to Code of Civil Procedure section 1033.5, subdivision (c)(2).

i.

Filing and Motion Fees, Fees for electronic filing or service

Plaintiff seeks \$504.10 in filing

and motion fees, and \$323.60 in fees for electronic filing or service. (Memo. of Costs, p. 1, ¶¶ 1, 14.)

Defendant argues Plaintiff's filing-related charges are not shown to have been reasonably necessary to the conduct of the litigation; for example, Plaintiff filed a preemptory challenge to the assigned judicial officer, a notice of posting of jury fees only to waive jury trial, and a notice of change of address. (Mot., p. 6.) Defendant argues these filings were not necessary to resolve the factually bare issues and should therefore not be shifted to Defendant as recoverable costs. (Mot., p. 6.)

In opposition, Plaintiff argues he does not claim a charge for a peremptory challenge or a separate charge for a notice posting jury fees. (Opp., p. 8.) Plaintiff further argues that the claim for a jury deposit fee is allowed expressly by section 1033.5, subdivision (a)(1), and that a filing charge for a notice of change of address is necessary to keep the address of record current with the Court. (Opp., p. 8.) Finally, Plaintiff concedes he cannot find documentation for \$43.00 claimed for a certified copy of the restraining order judgment and thus withdraws it. (Opp., p. 8.)

The memorandum of costs is prima facie evidence of reasonableness regarding costs and expenses. (Whatley-Miller, *supra*, 212 Cal.App.4th at 1115.) Filing fees, motion fees, and fees for electronic filing or service are recoverable under Code of Civil Procedure section 1033.5, subdivisions (a)(1) and (a)(14). Here, Defendant does not present evidence to the contrary. Defendant only challenges the costs sought by Plaintiff by alleging they are not reasonably necessary. Nonetheless, in opposition, Plaintiff provides invoices for all documents filed in this action. (Herron Decl., Exhs. A-L.) Defendant has not overcome Plaintiff's showing of reasonableness.

As a result of Plaintiff's concession regarding the \$43.00 fee for a certified copy of the restraining order, the Court will tax Item 1 by \$43.00 to reflect \$461.10 in filing and motion fees actually incurred. The Court will not tax Item 14 fees, as Defendant has not overcome Plaintiff's prima facie showing of reasonableness.

ii.

Deposition Costs

Plaintiff seeks \$2,354.00 in deposition costs. (Memo. of Costs, p. 1, ¶ 4.)

Defendant

argues Plaintiff's deposition costs were not reasonably necessary, as the relevant information could have been obtained through written discovery, stipulations, or other less expensive means. (Mot., pp. 6-7.) Defendant argues these costs should be taxed in their entirety because Plaintiff cannot demonstrate the depositions were reasonably necessary and reasonable in amount where the damages award was within the jurisdictional limit of small claims. (Mot., p. 7.)

In

opposition, Plaintiff argues Defendant contended he was acting to protect another person, Sheila O'Flynn, during the incident. (Opp., p. 4.)

Plaintiff served requests for admission to narrow the issues before taking any depositions, but Defendant denied that he was acting in self-defense or in defense of others. (Opp., p. 5.)

Plaintiff therefore contends depositions were necessary and reasonable to address Defendant's justification. (Opp., p. 5.) Plaintiff further argues both deponents were called to testify at trial. (Opp., p. 5.)

Deposition

costs are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3). Here, Defendant provides no substantive evidence to challenge Plaintiff's prima facie showing of reasonableness. Defendant only argues that the deposition costs are unreasonable because Plaintiff could have obtained the information through written discovery and Plaintiff's award was within the jurisdictional limit of small claims. Nonetheless, Plaintiff provides an invoice for both the deposition of Sheila O'Flynn and Defendant. (Herron Decl., Ex. D.) Defendant has not overcome Plaintiff's showing of reasonableness. The Court does not tax the deposition costs.

iii.

Service of Process

Plaintiff seeks \$748.50 in service of process fees. (Memo. of Costs, p. 1, ¶ 5.)

Defendant argues Defendant's counsel accepted service by Notice and Acknowledgment of Receipt, filed on February 18, 2025, after Plaintiff mailed the papers. (Mot., p. 8.) Defendant therefore contends third-party process server charges are not reasonably necessary. (Mot., p. 8.)

In opposition, Plaintiff argues he conducted service in the order contemplated by the statute, by first engaging a registered process server, and then mailing the complaint package when service was unsuccessful. (Opp., pp. 6-7.) Plaintiff contends the registered process server attempted service at Defendant's residence five times, and at Defendant's business four times. (Opp., p. 7.) Plaintiff further argues a large portion of the service fees were not spent serving Defendant, but rather on serving subpoenas on a third parties. (Opp., p. 7.)

Service of process costs are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(4). Here, Defendant provides no substantive evidence to challenge Plaintiff's prima facie showing of reasonableness. Defendant argues the service costs are unreasonable because Defendant's counsel accepted service. However, Plaintiff supplies invoices for service of a deposition or trial subpoenas on a third party. (See Herron Decl., ¶ 12; Ex. F.) Plaintiff also provides status reports of the registered process server's attempted service on Defendant but does not provide invoices. (Herron Decl., ¶ 12; Ex. L.) Defendant has not overcome Plaintiff's showing of reasonableness. Nonetheless, because Plaintiff does not provide an invoice for service attempts on Defendant, the Court taxes Item 5 by \$70.00 to reflect \$678.50 in service of process fees actually incurred.

iv.

Court reporter fees

Plaintiff seeks \$2,180.00 in court reporter fees. (Memo. of Costs, p. 1, ¶ 11.)

Defendant argues Plaintiff's court reporter fees are unreasonably high for a short bench trial that involved limited factual and legal complexity. (Mot., p. 7.)

In opposition, Plaintiff argues the court reporter was the appointed official court reporter pro tempore, on the stipulation of both parties. (Opp., pp. 5-6.) Plaintiff further argues Defendant offers no evidence the costs in this matter are different from prevailing Los Angeles County rates. (Opp., p. 6.)

Court reporter fees are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(11). Here, Defendant provides no substantive evidence to challenge Plaintiff's prima facie showing of reasonableness. Defendant only challenges the costs by alleging they are disproportionate to the nature and apparent length of the proceedings but fails to provide evidence in support. Nonetheless, Plaintiff provides invoices for the court reporter. (See Herron Decl., Ex. E.) Defendant has not overcome Plaintiff's showing of reasonableness and these costs will not be taxed.

v.
Other

Plaintiff seeks \$2.59 in "other" costs. (Memo. of Costs, p. 1, ¶ 15.)

Defendant argues Plaintiff claims \$2.59 in "other" costs, without explanation or supporting documentation, thus the cost should be taxed in its entirety. (Mot., p. 8.)

In opposition, Plaintiff argues the \$2.59 cost is the postage to mail the complaint package to Defendant. (Opp., p. 6.)

Here, Defendant provides no substantive evidence to challenge Plaintiff's prima facie showing of reasonableness. Nonetheless, Plaintiff claims \$2.59 as postage on the memorandum of costs worksheet. (See Herron Decl., Ex. C.) Plaintiff's counsel also declares the cost as postage related to serving Defendant via mail. (Herron Decl., ¶ 12.) Postage is not an allowable cost except for exhibits, pursuant to Code of Civil Procedure section 1033.5, subdivision (b)(3). Since the postage here was

related to serving Defendant, it is not allowable. Thus, the Court taxes "other" costs in its entirety.

3. Conclusion

Defendant Stephen Christopher

Bello's Motion to Tax Costs is GRANTED IN PART.

Filing and motion fees are taxed in the amount of \$43.00. Service of process costs are taxed in the amount of \$70.00. "Other" costs are taxed by \$2.59.

Moving Defendant is ordered to give notice.

[1] The threshold for limited civil has, subsequent to Chavez, increased to \$35,000.00. (Code Civ. Proc., § 86, subd. (a).)